



BUYER BROKER AGREEMENT (Property-Specific)



THIS BUYER BROKER AGREEMENT (this "Agreement") is made and entered into between:

("BUYER") _____ and

("BROKER") _____.

with respect to the following:

- | | |
|----------|----------|
| 1) _____ | 5) _____ |
| 2) _____ | 6) _____ |
| 3) _____ | 7) _____ |
| 4) _____ | 8) _____ |

(hereinafter individually each referred to as a "Property" and collectively referred to as the "Properties").

1. **BROKER'S ROLE.** BROKER will assist BUYER in touring the Properties. If Buyer is interested in purchasing one or more of the Properties, then BROKER will: (A) consult with BUYER to discuss property requirements, financing alternatives, possession time schedules, financial capabilities, and acquisition and negotiation strategies, (B) assist in obtaining available information of material nature relative to desired Properties, (C) assist BUYER in presenting and negotiating contract offers on desired Properties, and (D) monitor contract and closing deadlines (collectively, "BROKER's Services"). BUYER understands that other potential buyers may consider, make offers on, or purchase through BROKER one or more of the Properties.
2. **BUYER'S OBLIGATIONS.** BUYER agrees to cooperate with BROKER with respect to the terms of this Agreement, including but not limited to: (A) be available to evaluate and/or view the Properties; (B) provide reliable information including financial information necessary for the performance of this Agreement; (C) on all occasions to notify other brokers and third parties of the existence of this Agreement and BROKER's relationship with BUYER with respect to the Properties.
3. **BROKERAGE RELATIONSHIP.** BROKER, or licensee of BROKER, has informed and disclosed to BUYER the brokerage relationship between BROKER and BUYER. "BROKER" shall include all real estate brokers, licensees, brokerage corporations, or business entities involved in this transaction. BROKER's required disclosure notices have been provided to BUYER and the brokerage relationship is:
☐ Transaction Broker ☐ Single Agent ☐ No Brokerage Relationship (if left blank, Transaction Broker Relationship shall apply).
4. **TERM OF AGREEMENT.** BUYER engages and grants BROKER the exclusive right and authority during the term of this Agreement to negotiate for the purchase, or other acquisition of a legal or equitable interest in or right to use, the Properties, which term shall commence on _____ ("Commencement Date") and shall terminate on _____ ("Termination Date"). The Commencement Date shall be the date this Agreement is signed by BUYER if no Commencement Date is inserted. The Termination Date shall be 90 calendar days from the Commencement Date in the event no Termination Date is inserted. If BUYER enters into a contract to purchase any of the Properties prior to the Termination Date, this Agreement shall automatically be extended until the closing or termination of said contract for sale. If during the _____-day period (if left blank, then 45-day period) after the Termination Date, BUYER enters into a contract to purchase any of the Properties, then BUYER will pay BROKER's Compensation as set forth in Paragraph 5, and this Agreement shall automatically be extended until the closing or termination of said contract for sale.
5. **BROKER COMPENSATION DISCLOSURE: COMPENSATION PAID TO A REAL ESTATE BROKER AND/OR ANY BROKER COMMISSIONS ARE NOT SET BY LAW AND ARE FULLY NEGOTIABLE.** BROKER shall receive a total compensation (the "Compensation") for BROKER's Services as follows:
☐ _____ % of the purchase price ☐ and \$ _____ **OR**
☐ a fee of \$ _____ **OR**
☐ _____ (Other)

for each Property (and any included personal property) purchased by BUYER. **Compensation shall be paid on each Property purchased, placed under contract or optioned by BUYER, or by any person, entity, assignee, successor in interest or nominee of BUYER acting**

on behalf of BUYER. Compensation shall be fully payable upon the earlier of closing, BUYER's right to occupy and/or control the applicable Property, or upon the event of BUYER's default under any contract to purchase the subject Property. BUYER shall be responsible for the Compensation to be paid to the BROKER; provided, however, BROKER is authorized to negotiate for a seller/listing broker to pay all or a portion of the Compensation. BUYER and BROKER acknowledge that Seller may offer a credit to BUYER at closing towards BUYER's closing costs and prepaids ("Seller's Concession"). BUYER agrees that if a Seller's Concession is provided and seller/listing broker is either not offering compensation to BROKER or the compensation offered by the seller/listing broker to BROKER is less than the Compensation due under this Agreement, then the Seller's Concession will be used towards payment of the BROKER's Compensation due under this Agreement. **If any compensation paid by a seller/listing broker to BROKER and/or Seller's Concession is less than the Compensation due to BROKER under this Agreement, BUYER shall pay the difference to BROKER upon the earlier of closing, BUYER's right to occupy and/or control the applicable Property, or upon the event of BUYER's default under any contract to purchase the subject Property. BROKER shall not receive compensation for BROKER's Services from any source exceeding the Compensation agreed to in this Agreement and shall disclose to BUYER the amount of compensation, if any, paid by a seller/listing broker to BROKER.**

- 6. DEFAULT.** If BUYER defaults under any contract to purchase any Property or otherwise breaches this Agreement, this Agreement shall not be terminated, but shall continue in full force and effect and BROKER shall have all remedies under the law to enforce this Agreement.
- 7. HOLD HARMLESS.** BUYER acknowledges and agrees that BROKER is not an expert in matters including, but not limited to law, taxation, surveying, structural conditions, engineering, financing, hazardous materials, etc. BUYER acknowledges that BUYER has been advised to seek professional expert assistance and advice in these and other areas of professional expertise. If BROKER provides to BUYER names or sources for such advice and assistance, BUYER acknowledges and agrees that BROKER does not warrant or guarantee the services and/or products. BUYER also agrees to hold BROKER harmless from liability resulting from incomplete and/or inaccurate information provided by BUYER to BROKER. BUYER agrees to indemnify BROKER against all claims, damages, losses, expenses, or liability arising from the handling of earnest money by anyone other than BROKER.
- 8. FAIR HOUSING/EQUAL OPPORTUNITY.** BROKER shall provide the BROKER's Services and make properties available to BUYER without regard to race, color, national origin, sex, handicap, familial status, religion, sexual orientation or any protected class under applicable federal, state, and local fair housing laws. BROKER shall not be required to violate any provision of the National Association of Realtors (NAR) Code of Ethics, as amended from time to time. BROKER will show BUYER properties regardless of any Seller Concession being offered in connection thereof.
- 9. MISCELLANEOUS.** This Agreement constitutes the entire agreement between the parties and shall be binding upon and inure to the benefit of the parties hereto, their respective heirs, administrators, successors, and assigns. BUYER shall not have the right to assign this Agreement without the BROKER's written consent, and BUYER shall not be released from liability under this Agreement. This Agreement cannot be terminated prior to its expiration, or modified in any manner, except by an agreement in writing, signed by BUYER and BROKER. Signatures and initials communicated by electronic or facsimile transmission shall be binding. Video and/or audio surveillance with recording capability may be in use on any property viewed by BUYER, therefore conversations at property viewings should not be considered private. Notices required to be given under this Agreement shall be given in writing using the contact information stated below. Notice to a licensee shall not constitute notice to the BROKER.
- 10. LITIGATION; ATTORNEY'S FEES AND COSTS.** The laws of the State of Florida shall control the interpretation and enforcement of this Agreement. In connection with any litigation concerning this Agreement, venue shall be in the county where the applicable subject Property is located, and the prevailing party shall be entitled to recover reasonable attorney's fees and court costs from the non-prevailing party, at all trial and appellate levels.
- 11. SURVIVABILITY.** All provisions of this Agreement which by their nature or context require performance or provide rights after the Termination Date of this Agreement shall survive this Agreement.

12. OTHER TERMS AND CONDITIONS.

(Buyer's Signature) (Date) (Buyer's Signature) (Date)

(Buyer's Printed Name) (Buyer's Printed Name)

Buyer's Mailing Address:

Buyer's Contact: (Home) _____ (Office) _____ (Cell) _____ (Fax) _____

Email Address: _____

(Authorized Broker's Signature) (Date) (Selling Licensee's Printed Name)

Brokerage Firm Name:

Broker's Mailing Address:

Broker's Contact: (Office) _____ (Cell) _____ (Fax) _____